

25STUD13041 25STUD13041

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-14

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Case Number: 25STUD13041 Hearing Date: August 14, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

AG

OPPORTUNITY ZONE FUND LLC,

vs.

SACHIN PATEL,

et al.

Case No.:

25STUD13041

Hearing Date: August 14, 2026

Defendant Sachin

Patel's motion, in pro per, for reconsideration is denied.

Defendant Sachin Patel ("Patel") ("Defendant"), in pro per, moves for this Court to reconsider its May 6, 2026, ruling ("5/6/26 Ruling").

Procedural Background

On

May 6, 2026, this Court issued its ruling on a trial in the instant case. The Court issued the following judgment and verdict:

1. The Notice to Pay Rent or Quit was Properly Served: This Court finds that Plaintiff did properly post and mail the Notice to Pay Rent or Quit on December 5, 2025.
2. Breach of Warranty of Habitability: Based on the evidence presented at trial, the Court finds that Plaintiff failed to provide approved heating facilities capable of maintaining a room temperature of 70° F in Defendants' apartment in November and December 2025 in violation of Civil Code § 1941.1(a)(4), California Code of Regulations, Title 24, Part 2.5, R325.8, and LAMC § 91.811.1. As such, defendants have met their burden of proving breach of the implied warranty of habitability.
3. Rent Reduction: Pursuant to C.C.P. §1174.2, this Court finds that the rent shall be reduced 10% for the Plaintiff's failure to provide functioning heat. Rent is therefore reduced by 10% from \$2,412/month to \$2,171/month.

JUDGMENT

1. Conditional Judgment is rendered in favor of Defendant on the condition that they remit to Plaintiff in certified funds 2 months' rent at the reduced rate of \$2,171/mo. for a total of \$4,342. This sum must be delivered to Plaintiff's counsel or his designee within 7 days of today's order, that is, by 11:59 pm on May 13, 2026.
2. Plaintiff is ordered to provide the Defendants' apartment with Code-compliant heat until the monthly rental rate is restored to \$2,412/mo. Until such proof of repair is provided to this Court, rent shall remain at the reduced sum of \$2,171/mo.
3. The parties are ordered to appear in Department 729 (formerly Department 71) on May 27, 2026 at 8:30 am. to show compliance with the above.

Defendant filed the instant motion on May 11, 2026. As of the date of this hearing Plaintiff has not filed an opposition.

Motion for Reconsideration

C.C.P. §1008(a) provides, as follows:

“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (C.C.P. §1008(a), emphasis added.)

After entry of judgment, superior court lacks jurisdiction to entertain or decide a motion for reconsideration. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 830.) Appeal from an order that is the subject of a motion for reconsideration divests the trial court of jurisdiction to consider a motion for reconsideration. (Michael v. Aetna Life & Casualty Insurance Co. (2001) 88 Cal.App.4th 925, 928.) On July 8, 2026, this Court signed a filed an unlawful detainer judgment. On July 27, 2026, Defendant filed a notice of appeal from this Court’s judgment. Accordingly, Defendant’s motion is denied for lack of jurisdiction.

Conclusion

Defendant’s motion for reconsideration is denied.

Moving Party is to give notice of this ruling.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court